

May 22, 2014



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 16167

EXPIRATION DATE: September 30, 2014

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: AREVA
Richland, WA
2. PURPOSE AND LIMITATION:
 - a. This emergency special permit authorizes the one-time, one way transportation in commerce of four (4) 30 inch diameter cylinders (30B cylinders), as identified in the application, containing residual (heel) quantities of uranium hexafluoride which are not in compliant with American National Standards Institute Standard No. N14.1. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.420(a)(2)(i) and 173.420(b) as the cylinders transported under this permit contain greater than 100 grams of uranium hexafluoride but are not designed, fabricated, inspected, tested, marked and inspected entirely in accordance with American National Standards Institute standard number N14.1.

May 22, 2014

5. BASIS: This emergency special permit is based on the application from Areva dated May 12, 2014 submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant economic loss.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Radioactive material, uranium hexafluoride non fissile or fissile-excepted	7	UN2978	N/A

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - Cylinders authorized for transport under the terms of this special permit are as described in AREVA application. Of these cylinders, three have improperly installed valves or plugs (insufficient thread engagement) and one is missing the ANSI code stamp on its nameplate.
- b. OPERATIONAL CONTROLS -
1. Shipment are authorized from the United States Enrichment Corporation's (USEC) gaseous diffusion plant near Paducah, Kentucky to AREVA Inc. fuel fabrication site at Richland, Washington. The travel distance is approximately 2,100 miles.
 2. Prior to shipment, a radiation protection specialist from USEC must survey each cylinder to confirm that it is compliant with the radiation and contamination standards stated in the HMR. Upon receipt, an AREVA radiation protection specialist will survey each cylinder to confirm that it is compliant with the radiation and contamination standards stated in the HMR.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

8. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.9. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.10. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

May 22, 2014

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

11. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: SGrey